

		(See Szymanski declaration, paragraph 8.) But the areas of inquiry for the PMK were not limited to where the accident occurred. It also included topics related to Mitsuwa's tender of defense and indemnity, under policies related to the accident. See Amended notice of deposition, topics 1-4. Further, it appears that the deposition ended before it was completed. [“MS. SHIKAI: So it looks like since Mr. David Szymanski had asked for the deposition to finish by 4:00 and we haven't finished the deposition; we will be continuing this deposition.”] Defendant Mitsuwa Corporation dba Mitsuwa Marketplace's motion to compel defendant Gyutan Tsukasa USA, Inc.'s PMK for deposition is GRANTED. The deposition shall take place as follows: Date: August 14, 2026 Time: 10:00 a.m. Place: Zoom The date, place or time of the deposition may be modified upon written stipulation by the parties only. Defendant Mitsuwa's request for judicial noticed is granted. Mitsuwa to give notice.
6	Chemi vs. Baraca Remodeling, Inc. 2025-01467851	1. Motion for Leave to File Amended Complaint 2. Motion to Dismiss Plaintiffs' Motion for Leave to File First Amended Complaint Plaintiffs Maricel Chemi and Gabriel Szlechtman's Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); Atkinson v. Elk Corp (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; Howard v. County of San Diego (2010) 184

		Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Defendants fail to establish any prejudice that would result from permitting the filing of the proposed First Amended Complaint. All Defendants argue is that the declaration in support of Plaintiffs' motion lacks sufficient detail to assess whether Plaintiffs have been reasonably diligent in seeking amendment. This case is in its early stages and no trial date has even been set at this point. Granting leave to amend at this stage will not prejudice Defendants to the point that denial of leave to amend can be justified, even if Plaintiffs could have been more prompt in submitting the First Amended Complaint for filing. Plaintiffs shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court's electronic filing system. Defendants' Motion to Dismiss Defendants Baraca Remodeling, Inc., Tamir Didi, and Ronen Simonpur's Motion to Dismiss is DENIED. Defendants seek dismissal of the fourth and fifth causes of action pursuant to Code Civ. Proc. §581, subd. (f)(2) on the ground that a demurrer was sustained as to these causes of action with leave to amend and Plaintiff failed to timely file a First Amended Complaint addressing the legal deficiencies in these causes of action. Code Civ. Proc. §581, subd. (f)(2) provides that the "court may dismiss the complaint ... after a demurrer to the complaint is sustained with leave to amend [and] the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal" As relief under this section is discretionary, the Court DENIES the motion to dismiss in
--	--	--

		light of the foregoing order granting Plaintiffs leave to file a First Amended Complaint. Plaintiffs shall provide notice of this ruling.
7	Rodriguez vs. Super Antojitos Don Chepe Corp 2025-01521776	Demurrer to Amended Complaint Defendants Jose De Jesus Lopez, Jose Eduardo Lopez aka Eduardo Lopez, and Claudia Lambaren's demurrer to plaintiff Julio C. Pacheco Rodriguez' First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10.) The Court finds that moving party has satisfied the meet and confer requirements for demurrers. (Code Civ. Proc., § 430.41, subd. (a)(3)(B); Thakur Decl., ¶¶ 2-4, Ex. A [requesting "availability to telephonically meet and confer"], Ex. B [same].) The FAC sufficiently alleges liability on the part of these moving parties pursuant to Labor Code, § 558.1. (FAC, ¶¶ 3-5 [alleging each moving defendant is an "owner, director, officer, and/or a managing agent" of the entity defendant], ¶ 13 [alleging "At all relevant times, Defendants Jose, Eduardo, and Lambaren in their individual capacities as an owner, director, officer, and/or a managing agent of SADCC supervised the Plaintiff and had authority over and made decisions about the Plaintiff's work schedule (e.g., when and how many hours a day and week the Plaintiff worked), Plaintiff's daily job duties, Plaintiff's working conditions (e.g., employee conduct rules, dress code, overtime, rest and meal breaks), Plaintiff's pay rate, and payment of the Plaintiff's wages," and "controlled and/or maintained the Plaintiff's employment and payroll records"].) Moving parties contend that more is required at the pleading stage, but largely rely on nonbinding federal authorities. (United Firefighters of Los Angeles City v. City of Los Angeles (1989) 210 Cal.App.3d 1095, 1115